

Hyderabad General Clauses (Amendment and Supplementary) Act, 1950

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State of Maharashtra - Act

Hyderabad General Clauses (Amendment and Supplementary) Act, 1950

MAHARASHTRA

India

Hyderabad General Clauses (Amendment and Supplementary) Act, 1950

Act 18 of 1950

Published on 15 May 1950

Commenced on 15 May 1950

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Hyderabad General Clauses (Amendment and Supplementary) Act, 1950

(Hyderabad Act

No. 18 of 1950

F.)

Published in Jarida No. 33, dated 15th May, 1950.

(Received the assent of H.E.H. the Nizam on 2nd May, 1950)

Whereas it is expedient to determine the extent of application of the Hyderabad General Clauses Act (III of 1308 F.) and to make special provision for the construction of certain Hyderabad laws;

It is hereby enacted as follows :-

1.

Short title and commencement.

(1)

This Act may be called the Hyderabad General Clauses (Amendment and Supplementary) Act, 1950.

(2)

It shall come into force at once.

2.

Definitions.

- In this Act, unless there is anything repugnant in the subject or context,-

(a)

"Constitution" means the Constitution of India;

(b)

"Hyderabad Act" means -

(i)

an Act of the Legislature established for [the pre-Reorganisation Hyderabad State]

[Published in Jarida No. 33, dated 15th May, 1950.]

by the Constitution, including an Act made under [Article 385]

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thereof, and

(ii)

an Act made before the commencement of the Constitution by the Legislative Council or the Legislative Assembly in existence in [the pre-Reorganisation Hyderabad State]

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at the time of the making of the Act;

(c)

"Hyderabad Regulation" means -

(i)

a regulation including an A' in, made by H. E. H. the Nizam before the 18th day of September, 1948, and

(ii)

a regulation made by H.E.H. the Nizam, the Military Governor or the Chief Minister on or after the said date but before the commencement of the Constitution.

3.

Application of Hyderabad General Clauses Act.

- Save as provided in section 4, the provisions of the Hyderabad General Clauses Act (III of 1308F.) as respects the construction of acts and of orders, rules and forms made thereunder shall apply, and be deemed always to have been applied, in respect of the construction of all Hyderabad Acts and Hyderabad Regulations and of orders, rules and forms made thereunder.

4.

Rules of constructions applicable to certain enactments.

- In all Hyderabad Acts of the descriptions mentioned in sub-clause (i) of clause (b) of section 2 and in all Hyderabad Regulations of the description mentioned in sub-clause (i) of clause (c) of section 2, unless there is anything repugnant in the subject or context,-

(a)

"Government" or "the Government" means the State Government as defined in clause (60) of section 3 of the General Clauses Act, 1897 (India Act X of 1897);

(b)

"financial year", "month" and "year" have the meaning respectively assigned to them in clauses (21), (35) and (66) of the said section 3.

5.

Amendment and repeal.

- Section 24 of the Hyderabad General Clauses Act (III of 1308F) shall be omitted and the Hyderabad General Clauses

Act (Amendment) Regulation, 1358F. (XIX of 1358F.) shall be repealed.

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